

March 27, 2026.

2. Motion to Compel Further Responses and Production of Documents to Defendant and request for monetary sanctions, filed on March 30, 2026.

These motions were originally scheduled for hearing on September 30, 2026 at 9:00 a.m. Proofs of service evidence service on Defendant's Counsel, David Ericksen, by e-mail on March 27, 2026 and March 30, 2026. By the Court's order on April 13, 2026, the Court advanced the hearing for these motions for June 3, 2026. The *Ex Parte* order was mailed and e-mailed to counsel of record on April 15, 2026, including Defendant's Counsel, David Ericksen.

Oppositions were due by Defendant on May 20, 2026. No timely oppositions were filed with the Court by Defendant.

California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See

<https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

After considering the foregoing, the Court finds good cause to grant both of Plaintiff's Motions.

Ruling

- Plaintiff's Motion for Order Deeming Request for Admissions Admitted against Defendant, filed on March 27, 2026, is **granted**. Sanctions in the amount of \$1,110 is awarded to Plaintiff. The Court will execute the proposed order lodged on March 27, 2026.
- Plaintiff's Motion to Compel Further Responses and Production of Documents to Defendant and request for monetary sanctions in the amount of \$4,960, filed on March 30, 2026 is **granted**. The Court will execute the proposed order submitted to the court by e-mail on June 1, 2026.

22. 9:01 AM CASE NUMBER: C23-01280

CASE NAME: LAURIE MIMS VS. GWEN BERTOLAMI LYSONS

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS TO GWEN BERTOLAMI LYSONS**

FILED BY: MIMS, LAURIE

TENTATIVE RULING:

See Line 21.

23. 9:01 AM CASE NUMBER: C24-03380

CASE NAME: GREGORY SMITH VS. FCA US LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSE TO SPECIAL INTEROGS SET 2
FILED BY: SMITH, GREGORY**

TENTATIVE RULING:

Summary

This Tentative Ruling applies to Lines 23 and 24. The Court issues this tentative ruling for the following discovery motions filed by Plaintiff Gregory Smith:

1. Plaintiff Gregory Smith's ("Plaintiff") Motion to Compel Further Responses to Request for Production Set Two from Defendant FCA US LLC ("Defendant" or "FCA") and Request for Sanctions in the amount of \$2,704.50 filed on January 23, 2026. Plaintiff requests responses to Request for Production numbers 47-48, and 50-60 pursuant to Cal. Code of Civ. Proc. § 2031.310
2. Plaintiff's Motion to Compel Further Answers to Special Interrogatories, Set Two and for Sanctions in the amount of \$2,704.50 against Defendant filed on January 23, 2026. This motion seeks further code-complaint responses to special interrogatories nos. 47-58 pursuant to Cal. Code of Civ. Proc. § 2030.300(a) and 2030.030(d).

As set forth in this tentative ruling, the Court **grants** both motions in part and **denies** both motions in part.

Background

This lawsuit stems from FCA's alleged failure to fulfill its statutory obligations under the Song-Beverly Consumer Warranty Act. Plaintiff purchased a 2022 RAM 1500 (VIN: 1C6SRFJM2NN328864) for which FCA provided express and implied warranties. After acquiring the vehicle, Plaintiff alleges to have experienced multiple issues and brought the vehicle to authorized repair facilities on numerous occasions. Despite these repair attempts, Plaintiff alleges that FCA was unable to conform the vehicle to its applicable warranties, prompting the plaintiff to file a complaint alleging violations of the Song-Beverly Act.

The current dispute centers on discovery requests, with the Plaintiff having served a Second Set of Request for Production of Documents and Special Interrogatories on October 16, 2025 seeking information about FCA's backup procedures, preservation efforts, and retention policies.

FCA claims that it responded to these requests on November 20, 2025, and contends that the plaintiff's motion seeking further responses is harassing and unwarranted, particularly regarding Requests for Production Nos. 47-48 and 50-60.

FCA argues that these requests are overly broad, unduly burdensome, and constitute improper "discovery on discovery" rather than information relevant to the warranty claim. The timeline shows the lawsuit was filed on December 13, 2024, with the first discovery set served on February 28, 2025. FCA maintains it has fully complied with the plaintiff's voluminous first set of discovery requests and that the second set improperly investigates FCA's discovery processes without any showing that FCA

has been deficient in producing documentation relevant to the Song-Beverly claim. FCA has requested that the court deny the Plaintiff's motions in their entirety.

Analyses

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, 2030.300, *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138. In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court's local rules states that motions "should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved." L.R. 2.122(c). Cal. Code of Civ. Proc. § 2030.010 requires, at a minimum, attorneys to talk by telephone to work out issues, rather than just send written correspondence with an invitation to "call me if you should have any further questions or comments," which Courts have found to be insufficient. *Jovita Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 429, 431-433

Here, the record submitted to the Court shows that Counsel had exchanged written correspondence in an attempt to "meet and confer" with each other regarding the instant discovery disputes. While the attempts did not result in resolution, the Court finds that the Parties have just barely satisfied their obligation to informally resolve these discovery disputes prior to filing this motion as required by the Court's rules and the Code of Civil Procedure.

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor*

& *Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are "incomplete or evasive," or an "objection to an interrogatory is without merit or too general." When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Production or Inspection of Documents

Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

If a responding party does not have documents response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control of the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. (Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230.) Absent these representations, a response is defective.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery," to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to compel or to limit discovery," or to fail to meet and confer to resolve discovery disputes informally.

CCP Section 2023.030(a) provides: "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or an attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct."

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c). It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California's Discovery act was "intended to take the 'game' element out of trial preparation," considering that "a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise." (*Greyhound Corp. v. Super. Court In and For*

Merced County (1961) 56 Cal.2d 355).

In reviewing the separate statements, moving papers, oppositions and the declarations of Counsel Colby Meagle and Ziyi (Yolanda) Li and applying the foregoing statutory and decisional authorities, the Court makes the following findings and orders:

Ruling

1. The Court makes the following rulings on Plaintiff's Motion to Compel Further Responses to Request for Production, Set Two, numbers 47-48, and 50-60:

- No. 47. Denied. Defendant has complied with Cal. Code of Civ. Proc. § 2031.230.
- No. 48. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 50. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 51. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 52. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 53. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 54. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 55. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 56. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 57. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 58. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 59. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 60. Granted. Defendant's objections are overruled. Defendant shall prepare a response and shall produce further documents relating to document destruction and data destruction particular to the subject vehicle.

2. The Court makes the following rulings on Plaintiff's Responses to Special Interrogatories, Set Two, nos. 47-58:

- No. 47: Granted in part. Denied in part. Defendant's objections on the grounds that that this request is overly broad and vague is sustained. Defendant shall provide further responses with respect to the subject vehicle only.
- No. 48. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 49. Granted in part. Denied in part. Defendant's objections on the grounds that this is overly broad is sustained. Defendant shall provide further answers only as it relates to

person(s) in FCA who are responsible for the operation, maintenance, expansion, archiving and upkeep of the network for customer call logs for the subject vehicle.

- No. 50. Granted in part. Denied in par. See No. 49, above.
- No. 51. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 52. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 53. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 54. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 55. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 56. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 57 Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.
- No. 58. Denied. Defendant's objections on the grounds that that this request is overly broad and vague is sustained.

3. Time for Compliance

Defendant shall provide further code-complaint and verified answers to interrogatories and further responses to production, including the documents responsive to production, no later than 15 days from the date Defendant is served with this order.

4. Sanctions

Plaintiff's request for sanctions are denied. Each side to bear their own costs and attorney's fees for bringing and defendant against this motion.

Defendant's Counsel shall prepare and e-file a proposed order conforming to this tentative ruling, attaching a copy of this tentative ruling as an exhibit, no later than five (5) court days from the date of the hearing.

24. 9:01 AM CASE NUMBER: C24-03380

CASE NAME: GREGORY SMITH VS. FCA US LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD SET 2**

FILED BY: SMITH, GREGORY

TENTATIVE RULING:

See Line 23